PDM
Popular Democratic Movement

PARLIAMENT OFFICE
Office 154, Southern Wing,
Parliament Building, Love Street,
Central Business District, Windhoek
Tel: +264 61 288 2563
Fax2E: +264 886 557 471
Email: pdmnamibia@gmail.com

The Motion Seeks to Debate the Deplorable Conditions in Which Holding and Correctional Facilities and are in with the Objective of Protecting the Rights of all Persons to Dignity.

Koviao-Vetarera I. Hengari, MP

Honourable Members of Parliament, I rise today to bring forth a motion for the immediate and comprehensive reform of our detention and correctional facilities across our beloved nation. The recent Ombudsman's report, detailing conditions within these institutions, highlights stark inconsistencies and flaws in a system that is entrusted with upholding the dignity and safety of our fellow citizens. It is not simply a matter of a flawed system; it is a crisis that undermines the very foundation of our human rights principles and our commitment to justice.

The Ombudsman conducts annual visits to places of detention across the country, including police cells, correctional facilities, and places where illegal immigrants are detained. The purpose of these visits is to monitor conditions, food provision, and legality of detentions.

The Ombudsman's report identifies concerning issues in places like Bethanie and Mariental police stations. Overcrowding, poor sanitary conditions, delayed access to medical care, and a lack of basic necessities are challenges faced by inmates across the country. It is, **Honourable Members**, a grim reflection of the disregard for the health and welfare of the detained population, and a stark reminder of the urgent need for reform.

Mr. Speaker, as a nation yet to ratify the Optional Protocol to the Convention against Torture and Other Inhumane or Degrading Treatment or Punishment, we must take strides to demonstrate our dedication to this cause. As representatives of our people, we are duty-bound to uphold the rights of all citizens, including those behind bars. It is our moral and legal obligation to ensure that our detention facilities are habitable, dignified, and respect the rights of inmates to health, safety, and humane treatment. I call on this house to join me in this motion, to commit ourselves to the transformation of our prison system, and the guarantee of the fundamental human rights of all Namibian citizens, irrespective of their situation. For it is in these trying times that the strength of our commitment to justice and fairness will truly be tested.

Honourable Members of Parliament, let us delve deeper into the conditions detailed in the Ombudsman's report on additional detention and correctional facilities.

Despite commendable efforts seen in stations like Gochas, Gibeon, and Lüderitz, where cleanliness is upheld, several pressing issues persist. Long periods of detention, poor maintenance of facilities, and overcrowding,particularly seen at the Ohangwena Police Station, are indeed matters of great concern. While the diligent efforts of the Ombudsman and his team to educate inmates on their rights are laudable, such an effort cannot alone address the root of the problem.

Regrettably, our detention facilities, such as Aus Police Station, are marred by failing infrastructure, posing a clear and present health hazard to the inhabitants. Overcrowding, as seen in Oshikoto Region's Omuthiya Police Station, rendered it impossible to enforce crucial health regulations during the global pandemic, Covid-19. Worryingly, incidents of alleged assault amongst inmates, like the one previously reported at Oshivelo Police Station and another recently reported at Oshikango Police Station, reflect a system failing to maintain order and security. Further, in stations like Opuwo Police Station, complaints about case postponements and issues regarding bail elucidate a larger judicial backlog that further clogs our detention system, prompting us to consider reforms beyond the physical conditions of the facilities.

Moreover, we must take note of the grievances regarding food delivery delays due to transport challenges, which could compromise the nutritional well-being of the inmates. We must also pay heed to the dire situation at the Aus Police Station as previously reported, where a dysfunctional sewerage system poses a serious health hazard. It is in stations like Evaristus Shikongo Correctional Facility where we see rays of hope with construction of new units to accommodate inmates nearing the end of their sentences or those sentenced for minor offences, a proactive move that we should seek to replicate across the nation.

Honourable Members, the need for immediate and robust reform is glaringly apparent. It is our duty to ensure that these facilities align with our constitutional ideals, upholding the dignity and rights of every human being (citizen or not). Let us commit to a comprehensive prison reform strategy that not only addresses infrastructure and capacity issues, but also strengthens the delivery of justice, enhances staff competence, and uplifts the health and safety standards within our facilities. In doing so, we will pave the way towards a fairer, more humane prison system reflective of the values we hold as a nation.

Karasburg, Ariamsvlei, Keetmanshoop, Warmbad and Luderitz Stations

Environmental issues

The biggest issue in this areas is waste management. Where there was no fencing off of waste sites, sewage was found floating into residential areas.

Other complaints received from inmates range from inmates not being taken to the hospital timeously, broken toilets, officers having to contribute from their own pockets to buy cleaning products.

Windhoek Correctional Facility

As per the previous report, at the time of visit, the facility was home to 1,237 inmates, an overcrowding situation given its maximum capacity of 1,150. Inmates were provided with three

meals a day, but the quality and nutritional value were questionable. The facility's healthcare system was overwhelmed, with only two healthcare providers servicing the whole facility. As per the latest report, the overcrowding at the station persists. The holding cells were extremely dirty and most toilet pots and showers were broken and non-functioning.

Dordabis:
As per the latest report, investigators were greeted by litter all over as a result of waste being blown around due to an almost non-existent fence. The site is located within a residential area, which poses a health risk to the residents and livestock.

Witvlei, Epukiro, Leonardville and Gobabis

In contrast with Bethanie where there is a separate demarcation for juveniles, the Witvlei police station was home to 52 trial awaiting inmates. Out of these, four were females and two (one male, one female) were juveniles.

The most common complaints are related to bail and the alleged abuse of inmates by the police. Holding cells are in dilapidated conditions, broken toilets, with the overall infrastructure at the Epukiro police station in bad condition. Food shortages were raised as a matter of concern at the Leonardville Police station.

Narraville, Kamanjab, Karibib, Usakos and Swakopmund Police Stations

Issues ranging from over-crowdedness, the overall conditions of cells were very poor especially at the Karibib Police Station. Broken toilet pots, leaking showers and cracked/damaged walls.

Omungwelume, Oshikango, Ohangwena, Eenhana, Okongo Police Station

As reported previously, Omungwelume and Ohangwena police stations were found to be severely overcrowded once again. The Omungwelume station has three cells with a capacity of 30 persons, but 74 inmates were found in custody, this included 3 females, seven juveniles and seven foreign nationals, while the Ohangwena police station has a capacity of only 30 but 143 inmates were found in custody. Broken toilets, inmates denied the right to open a case against a police officer that allegedly assaulted him and another was denied a j88 form (a form required after physical assault) for medical treatment after an assault by police officials.

Other complaints include inmates not being taken to the hospital for follow up on time and inmate with chronic diseases in the cells live without their prescriptions. Inmates also alleged that they are being assaulted and threatened by members of the reserve force on a regular basis.

Hon. Speaker, I bring this motion, having fully understood the role of Members of Parliament and our duty toward all Namibians. As someone who was unlawfully arrested and who ended up spending a number of days at the Klein Windhoek Police Station, with open roofs and little to no access to privacy and having shared a cell with other accused persons, one in particular a 19-year-old female, **Mr. Speaker**, who at the time was pregnant, I believe this House can do something to guarantee accused persons and sentenced individuals access to dignity.

Concerning the high prevalence of HIV in prison, I believe that this issue should be addressed in the framework of the National Correctional Service Health Policy, which pushes for equal health conditions for convicts and the general public.

Finally, Hon. Speaker, the African Commission on Human and People's Rights identified a number of recommendations relevant and which agree with this substantive motion:

- That we adopt alternative sentencing for petty crimes/offences including Community Orders, to reduce prison population
- Build dedicated Juvenile Facility or construct separate Units for Juvenile Offenders, to ensure they are separated from adults, in line with the UN Convention on the Rights of the Child, the African Charter on the Rights and Welfare of the Child, and other regional and international standards;

- Ensure that Juvenile Offenders have proper detention facilities, to ensure their rehabilitation and reintegration in society as responsible adults, including educational and recreational facilities;

- Fastrack the construction of an additional correctional facility in Northern Regions to alleviate overcrowding esepcially in the Oluno Correctional Facility;

Hon. Members, it is high time that we looked at the possibility of introducing an independent oversight Mechanism for places of detention for purposes of preventing torture, cruel, inhuman or degrading treatment.

I propose that this motion be debated, discussed, and strengthened. Following the adoption of recommendations in this House, that rule 66 of the Standing Rules and Orders and Internal arrangements be activated.

I so move.